

26VECV03467 26VECV03467

County: los-angeles

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Case Number: 26VECV03467 Hearing Date: August 13, 2026 Dept: U

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

JANET SAFFARI, an individual; and RICHARD SAFFARI, an individual,

Plaintiffs,

vs.

COUNTY OF LOS ANGELES, et al.,

Defendants.

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CASE NO: 26VECV03467

[TENTATIVE] RULING RE: DEFENDANT JOHN STEVEN KENNEDY'S SPECIAL MOTION TO STRIKE PURSUANT TO CODE OF CIVIL PROCEDURE SECTION 425.16

Dept. U

8:30 a.m.

August 13, 2026

BACKGROUND

On June 12, 2026, Plaintiffs Janet Saffari and Richard Saffari filed their complaint against more than 50 defendants including Defendant John Steven Kennedy ("Kennedy"), alleging 18 causes of action related to alleged violations of civil rights statutes, violations of due process, unlawful eviction, and more. Plaintiffs are self-represented.¹

On July 20, 2026, Kennedy filed his special anti-SLAPP motion to strike under Code of Civil Procedure section 425.16. Kennedy, an attorney, is also self-represented.

As of 2:00 P.M. on August 11, 2026, Plaintiffs had filed no opposition brief.

RULING

The motion is granted. No award of attorneys' fees and/or costs will issue at this time.

LEGAL STANDARD

"A cause of action against a person arising from any act of that person in furtherance of the person's right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim." ² Code Civ. Proc., § 425.16 (b)(1). ³

The trial court applies a burden shifting analysis when considering a special motion to strike brought under section 425.16 (the "Anti-SLAPP Statute").¹ *Soukup v. Law Offices of Herbert Hafif* (2006) 39 Cal.4th 260, 278 (*Soukup*).² First, the defense carries the burden of making a threshold showing that the challenged cause of action arises from "any act of that person in furtherance of the person's right of petition or free speech under the [federal or state constitution] with a public issue."³ Code Civ. Proc., § 425.16 (b); see *Soukup*, at p. 278.⁴ Second, if, and only if, the defense meets its threshold burden, the burden will shift to the plaintiff to demonstrate a probability of prevailing on the merits of the claims at issue. See *Equilon Enterprises v. Consumer Cause, Inc.* (2002) 29 Cal.4th 53, 67 (*Equilon*).

REQUEST FOR JUDICIAL NOTICE

Kennedy requests that the Court take judicial notice of a complaint for partition of real property filed in case # 22STCV14367. The Court takes judicial notice as requested. See Evid. Code, § 452.

DISCUSSION

Summary of Allegations in the Complaint

Kennedy is an attorney who represented Defendant Karen Jean Ziegenbein ("Ziegenbein") in the earlier partition action. Plaintiffs allege Kennedy was present when Ziegenbein created a new trust and estate plan in early 2022, brought about with the involvement of Defendants Stacy Anne Jazan ("Stacy") and Jorge Norberto Jazan ("Jorge"). The new trust and estate plan replaced Ziegenbein's prior estate plan of nearly 25 years with one favoring Stacy and Jorge. (Complaint, ¶ 5.)

Plaintiffs allege that in April of 2022, Kennedy filed a partition lawsuit against the property that Plaintiffs lived in. Plaintiffs allege Kennedy had them "gutter served" through a process server who Plaintiffs say falsely claimed to have personally served a resident at the house. Plaintiffs allege Kennedy knew or should have known the proof of service was improper. (Complaint, ¶ 63.)

Plaintiffs assert that Kennedy's partition filing relied on non-binding language in Ziegenbein's estate documents, concealed an earlier 1997 will, and failed to name all parties with an interest in the property as required by law. Plaintiffs allege that had Kennedy done basic diligence, he would have recognized that after a homestead exemption there was little equity left to justify a forced sale. Plaintiffs allege that Kennedy, Ziegenbein, Stacy, and Jorge used threats and intimidation against Plaintiffs, including while they were dealing with serious health issues. (Complaint, ¶¶ 64-68.)

Plaintiffs say Kennedy improperly recorded a lis pendens against the subject property without giving required notice to all parties, including Plaintiffs. Plaintiffs allege Kennedy's partition filing ignored the 2022 Uniform Partition of Heirs Property Act and homestead protections against forced sale. (Complaint, ¶¶ 68-71.)

Plaintiffs allege the partition complaint improperly sought reimbursement from Plaintiffs for a FEMA/SBA disaster loan that was solely in Ziegenbein's name. Plaintiffs allege Kennedy began consulting with Defendant Matthew Livingston Taylor ("Taylor"), who was later appointed as a neutral partition referee, as early as September of 2023, before Taylor's appointment. Plaintiffs allege Taylor gave Kennedy a sample proposed judgment that ignored homestead protections. Plaintiffs allege said relationship compromised Taylor's neutrality and was part of a scheme with Kennedy to fast-track a forced sale of the property. (Complaint, ¶¶ 70-89, 189-190, 264.)

Plaintiffs allege Kennedy, along with other defendants, submitted a false property appraisal to the court that overstated the size and value of the home, and that Kennedy ignored required pre-trial statutory procedures. Based on these allegations, Plaintiffs bring claims against Kennedy for violation of the Bane Act, abuse of process, and civil theft under Penal Code section 496 (c), among other claims. (Complaint, ¶¶ 89, 190, 261-264, 302.)

Kennedy's representation of Ziegenbein in the earlier partition action is protected conduct.

Kennedy specially moves to strike Plaintiffs' complaint under Code of Civil Procedure section 425.16.

The trial court applies a burden shifting analysis when considering a special motion to strike brought under the Anti-SLAPP Statute. See Soukup, supra, 39 Cal.4th at p. 278. First, the defense carries the burden of making a threshold showing that the challenged cause of action arises from "any act of that person in furtherance of the person's right of petition or free speech under the [federal or state constitution] with a public issue." Code Civ. Proc., § 425.16 (b); see Soukup, at p. 278. Second, if the defense meets its threshold burden, the burden shifts to the plaintiff to demonstrate a probability of prevailing on the merits of the claims at issue. See Equilon, supra, 29 Cal.4th at p. 67.

A review of the complaint in this case plainly shows that Plaintiffs' claims against Kennedy arise from petitioning and communicative acts performed by Kennedy as part of his representation of Ziegenbein in the earlier partition action. In short, Plaintiffs allege Kennedy failed to arrange for proper service, failed to accept that Plaintiffs had a homestead exemption, improperly recorded a lis pendens, and improperly sought reimbursement from Plaintiffs based on Ziegenbein's claims in the partition complaint.

The partition action was a judicial proceeding, thus Kennedy's litigation of that action on behalf of his client is protected activity for purposes of the anti-SLAPP statute. See Cabral v. Martins (2009) 177 Cal.App.4th 471, 479-480 ("all communicative acts performed by attorneys as part of their representation of a client in a judicial proceeding or other petitioning context are per se protected as petitioning activity by the anti-SLAPP statute"). Where, as here, "the plaintiff is a nonclient who alleges causes of action against someone else's lawyer based on that lawyer's representation of other parties, the anti-SLAPP statute is applicable to bar such nonmeritorious claims." Thayer v. Kabateck Brown Kellner LLP (2012) 207 Cal.App.4th 141, 158.

As to Plaintiffs' allegation that Kennedy began consulting with Taylor, the partition referee, as early as September of 2023, before Taylor's appointment, Kennedy's consultation with a referee is a matter clearly within the scope of Kennedy's representation of Ziegenbein. Plaintiffs allege Taylor gave Kennedy a sample proposed judgment that ignored homestead protections. Kennedy's receipt and/or submission of proposed orders that favored his client's interests is a communication within the scope of Kennedy's representation of Ziegenbein in that case.

In sum, as to each of Plaintiffs' claims against Kennedy, Kennedy satisfies the first prong of the anti-SLAPP analysis by showing that the challenged causes of action arise from protected activity.

Plaintiffs' claims against Kennedy are barred by the litigation privilege.

As to the second prong of the anti-SLAPP analysis, Plaintiffs carry the burden of demonstrating a probability of prevailing on the merits of their claims. See Equilon, supra, 29 Cal.4th at p. 67. The Court agrees with Kennedy that each of Plaintiffs' claims against him are barred by the litigation privilege.

The litigation privilege "applies to any communication (1) made in judicial or quasi-judicial proceedings; (2) by litigants or other participants authorized by law; (3) to achieve the objects of the litigation; and (4) that have some connection or logical relation to the action." Silberg v. Anderson (1990) 50 Cal.3d 205, 212. The litigation privilege is to be broadly interpreted to achieve its principal purpose of affording litigants and witnesses "the utmost freedom of access to the courts without fear of being harassed subsequently by derivative tort actions." Banuelos v. LA Investment, LLC (2013) 219 Cal.App.4th 323, 331, quoting Action Apartment Assn., Inc. v. City of Santa Monica (2007) 41 Cal.4th 1232, 1241.

For essentially the same reasons identified in the Court's discussion of the anti-SLAPP statute's first prong analysis, Plaintiffs' claims against Kennedy are barred by the litigation privilege. Plaintiffs generally allege that Kennedy's

representation of Ziegenbein in the earlier partition action worked against Plaintiffs' interests and defenses. Such advocacy is plainly the kind communication made in a judicial proceeding that the litigation privilege is intended to protect against harassment through derivative tort actions. Plaintiffs thus fail to meet their responsive burden of showing that they have a viable claim against Kennedy which is not barred by the litigation privilege.

If Plaintiffs had a proper challenge to service in the earlier partition action, Plaintiffs should have raised such issues in that case. The same is true of any irregularities re: counsel's communication with the referee and/or defects in any proposed judgment. It is plainly inappropriate for Plaintiffs to attempt to litigate those issues in this subsequent action, and such claims violate the anti-SLAPP statute. The motion is granted as to Plaintiffs' claims against Kennedy.

"[A] prevailing defendant on a special motion to strike shall be entitled to recover that defendant's attorney's fees and costs." Code Civ. Proc., § 425.16 (c)(1). Kennedy does not include an affirmative request for attorneys' fees or costs with his motion. As such, the Court makes no award of attorneys' fees and/or costs at this time.

CONCLUSION

Defendant John Steven Kennedy's special anti-SLAPP motion to strike is GRANTED as to Plaintiffs' claims against him in the Complaint.

No award of attorneys' fees and/or costs will issue at this time.

Defendant John Steven Kennedy is ORDERED to give notice.

DATED: August 13, 2026

Lee S. Arian

Judge of the Superior Court